

EMPLOYMENT AGREEMENT - JAMES CARTER

Matter HC-2025-0142 | Northstar Analytics Inc.

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Employee	James Carter
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EMPLOYMENT AGREEMENT

This Employment Agreement (the "Agreement") is entered into as of March 2, 2023 (the "Effective Date"), by and between Northstar Analytics Inc., a Franklin corporation with its principal office in Westbridge, Franklin (the "Company" or "Northstar"), and James Carter ("Employee"). The parties intend this Agreement to state the principal terms governing Employee's employment as Director of Enterprise Sales, Employee's access to sensitive Company information, and certain obligations that continue after the employment relationship ends.

1. Definitions

1.1 "Company Business."

The design, development, marketing, licensing, implementation, and sale of enterprise analytics software and related services used by commercial customers to measure sales performance, forecast pipeline activity, allocate account resources, and analyze customer-revenue data.

1.2 "Competitor."

Any person or entity that, during the twelve months immediately preceding Employee's separation, marketed or sold a product or service materially similar to a product or service then actively marketed or sold by the Company and directed to substantially the same enterprise customer segment. A business is not a Competitor merely because it purchases analytics software, employs sales personnel, or uses data-analysis tools internally.

1.3 "Confidential Information."

Non-public information concerning customer pricing, discount authority, pipeline forecasts, renewal probability, strategic account plans, sales playbooks, product roadmaps, security architecture, financial projections, employee compensation, acquisition plans, source code, models, methods, and other information that a reasonable person would understand to be confidential given the nature of the information and the circumstances of disclosure. Confidential Information does not include information that Employee can demonstrate became public through no breach of this Agreement or was lawfully known to Employee without a duty of confidentiality.

1.4 "Restricted Customer."

A customer or prospective customer for whom Employee had Material Responsibility during the final twelve months of employment. A prospective customer qualifies only if, during that period, the Company made a documented proposal or Employee participated in substantive pricing, product, or account-strategy discussions concerning that prospect.

1.5 "Material Responsibility."

Direct responsibility for an account, meaningful participation in pricing or renewal strategy, authority to approve discounts, regular access to non-public account strategy, or supervision of another employee who had such responsibility.

1.6 "Restricted Territory."

The geographic area within fifty (50) miles of the Company's Westbridge office. The parties acknowledge that Employee services national accounts and that the Restricted Territory is intended to protect local management, pricing, and customer-transition interests rather than to describe the full geographic scope of Employee's work.

1.7 "Cause."

For purposes of Sections 6 and 18, Cause means material dishonesty, fraud, embezzlement, willful misuse of Company Confidential Information, conviction of a felony involving dishonesty, repeated refusal to perform lawful material duties after written notice and a reasonable opportunity to cure, or a material breach of this Agreement that remains uncured for ten business days after written notice if the breach is reasonably capable of cure.

2. Position, Reporting Relationship, and Duties

2.1 Position. Employee will serve as Director of Enterprise Sales and will report initially to the Chief Revenue Officer. The Company may reasonably change Employee's reporting relationship, title, or allocation of accounts as business needs change, provided that the Company does not materially reduce Employee's base salary except as part of a generally applicable executive compensation program.

2.2 Core Duties. Employee will lead enterprise-sales planning, supervise assigned account executives, review pipeline forecasts, approve discounts within delegated authority, participate in strategic account reviews, and coordinate with customer-success and product teams. These duties require regular access to customer pricing, pipeline forecasts, strategic account plans, confidential sales methods, renewal information, and product-development priorities.

2.3 National Accounts and Travel. Employee may service customers throughout the United States and may travel outside Franklin. The parties acknowledge that Employee's customer responsibilities are not confined to the Restricted Territory defined in Section 1.6. This sentence does not modify the separate post-employment restrictions stated in Section 12.

2.4 Time and Attention. During normal business hours, Employee will devote substantially all professional working time to Company Business, except for approved civic, educational, charitable, or passive investment activities that do not materially interfere with Employee's duties.

3. Compensation

3.1 Base Salary. The Company will pay Employee an annual base salary of \$168,000, less applicable deductions, in accordance with the Company's normal payroll practices. The Company may review compensation annually but does not guarantee an increase.

3.2 Variable Compensation. Employee will be eligible to participate in the Enterprise Sales Incentive Plan described in Schedule A. Commission credit depends on booked and collectible revenue, account assignment, and any written split-credit determination approved before quarter close. A commission plan or account assignment may change prospectively without changing the post-employment restrictions in Section 12.

3.3 Bonus. Employee may be considered for an annual discretionary leadership bonus based on Company performance, team attainment, forecast accuracy, and strategic objectives. A discretionary bonus is not earned until approved in writing by the Compensation Committee.

4. Benefits and Continued Enrollment

4.1 Employee Benefits. While actively employed and otherwise eligible, Employee may participate in health, retirement, paid-leave, and other benefit plans made generally available to similarly situated employees, subject to the terms of those plans.

4.2 Continued Enrollment After Certain Leaves. If Employee takes an approved protected leave, Employee may remain enrolled in certain Company benefit programs to the extent required by the applicable plan or law. The phrase "remain enrolled" in this Section concerns benefit participation only and does not address whether Employee may remain employed by another business after separation.

4.3 Benefit Plan Control. If this Agreement conflicts with the formal terms of a benefit plan, the formal plan document controls as to benefits. Nothing in this Section alters Employee's duties concerning Confidential Information or competition.

5. Business Expenses and Company Property

5.1 Expenses. The Company will reimburse reasonable and necessary business expenses supported by timely documentation and incurred in accordance with Company policy.

5.2 Devices and Records. Company laptops, mobile devices, access tokens, customer lists, notes, forecasts, pricing worksheets, and other business records remain Company property. Employee will not transfer Company records to personal storage except through an approved Company workflow.

5.3 Return of Property. On request or separation, Employee will promptly return Company property and, subject to lawful retention rights, permanently delete Company Confidential Information from personal devices or accounts. Employee will provide reasonable written certification of compliance if requested.

6. Term and Termination

6.1 At-Will Relationship. Employment is at will. Either party may terminate employment at any time, with or without Cause, subject to any notice obligations separately stated in this Agreement. No manager may alter the at-will relationship except in a written instrument signed by the Chief Executive Officer and Employee.

6.2 Resignation. Employee agrees to provide at least fourteen calendar days' written notice of resignation when reasonably practicable. The Company may accept the resignation immediately, relieve Employee of duties during the notice period, restrict access to systems, or continue salary through the stated resignation date.

6.3 Termination for Cause. If Employee is terminated for Cause as defined in Section 1.7, the Company may immediately end system access and may exercise any lawful remedies arising from the conduct giving rise to Cause. A termination for Cause does not enlarge the duration or geographic scope of Section 12.

6.4 Effect of Separation. Separation ends Employee's authority to bind the Company. Sections concerning Confidential Information, intellectual property, restrictive covenants, return of property, remedies, dispute resolution, and other provisions that by their nature should survive will remain in effect according to their terms.

7. Confidential Information

7.1 Duty of Non-Disclosure. Employee will hold Confidential Information, as defined in Section 1.3, in confidence and will use it only for the benefit of the Company while performing authorized duties. Employee will not disclose such information during or after employment except as authorized by the Company or as legally required.

7.2 Security Practices. Employee will follow Company security controls, including approved password-management, multi-factor authentication, document-sharing, device-management, and customer-data procedures. Employee will not forward confidential account materials to personal email merely for convenience.

7.3 Required Disclosure. If Employee is legally compelled to disclose Confidential Information, Employee will, to the extent legally permitted, provide prompt notice sufficient to allow the Company to seek appropriate protection.

Employee will disclose only the portion legally required.

7.4 General Skills and Experience. Nothing in this Agreement prevents Employee from using general skill, experience, and knowledge retained in unaided memory, provided Employee does not use or disclose Confidential Information, trade secrets, or protected customer materials.

8. Intellectual Property and Work Product

8.1 Company Work Product. To the extent permitted by law, work product created by Employee within the scope of employment, using Company resources, or relating directly to Company Business will be owned by the Company. Employee assigns to the Company any rights necessary to confirm such ownership.

8.2 Prior Materials. Employee retains ownership of materials listed in Schedule B, if any. If Employee incorporates prior materials into Company Work Product with authorization, Employee grants the Company a perpetual, worldwide, royalty-free license reasonably necessary to use the resulting work product.

8.3 Further Assurances. Employee will reasonably assist the Company in documenting ownership rights, including after separation, provided the Company reimburses reasonable out-of-pocket expenses for assistance requested after employment ends.

9. Customer Relationships and Account Information

9.1 Customer Information. Customer identities may be publicly known, but non-public renewal dates, negotiated pricing, discount history, product-adoption data, buying criteria, executive concerns, competitive evaluations, and internal account strategy may constitute Confidential Information.

9.2 Account Reassignment. The Company may reassign customers among sales personnel. A reassignment does not itself determine whether a customer is a Restricted Customer. That determination is governed by Sections 1.4 and 1.5 and depends on Employee's actual Material Responsibility during the final twelve months of employment.

9.3 Customer Communications. Employee may communicate with customers in the ordinary course of employment and may maintain professional relationships consistent with Company policy. After separation, communications are subject to Section 12.5 if the recipient is a Restricted Customer.

10. Outside Activities and Investments

10.1 Outside Activities During Employment. Employee will not provide paid services to a Competitor while employed by the Company without written approval. Employee may teach an evening course, serve on a nonprofit board, or engage in passive investment activity if the activity does not materially interfere with Company duties or create a material conflict of interest.

10.2 Passive Investments. Ownership of less than two percent of a publicly traded company will not, by itself, violate this Agreement even if that company is a Competitor. This exception concerns passive ownership only and does not authorize employment, consulting, or disclosure of Confidential Information.

10.3 Family and Personal Activities. Nothing in this Agreement prohibits ordinary personal purchases, investments, or social relationships with persons employed by customers or competitors, provided Employee does not use such relationships to evade the restrictions that otherwise apply.

11. Non-Solicitation During Employment

11.1 Employees. During employment, Employee will not knowingly solicit a Company employee to leave employment for the purpose of joining a business that Employee controls or for which Employee is then providing unauthorized services.

11.2 Customers. During employment, Employee will not divert a customer opportunity away from the Company for personal benefit or for the benefit of an outside business. This Section governs conduct while employed and is separate

from the post-employment customer restriction in Section 12.5.

12. Post-Employment Restrictive Covenants

12.1 Restricted Competitive Services. Subject to Sections 12.2 through 12.7, Employee will not, after separation, provide substantially similar enterprise-sales leadership or strategic-account services to a Competitor when the services would be performed principally from within the Restricted Territory or would require Employee to use the Company's Confidential Information. For avoidance of doubt, the restriction applies to services materially similar to the duties described in Sections 2.1 and 2.2; it does not prohibit work that is operationally distinct from Employee's Northstar role merely because the new employer also sells technology products.

12.2 Geographic Scope. The geographic restriction applicable to Section 12.1 is the Restricted Territory defined in Section 1.6, namely the area within fifty (50) miles of the Company's Westbridge office. Employee's prior responsibility for national accounts does not expand that geographic radius. Conversely, travel outside the Restricted Territory does not avoid the restriction if Employee's substantially similar competitive services are principally directed, managed, or performed from within the Restricted Territory.

12.3 Duration. The restriction in Sections 12.1 and 12.2 lasts for twelve (12) months beginning on Employee's final day of employment. The customer non-solicitation restriction in Section 12.5 lasts for six (6) months. The confidentiality obligations in Section 7 continue according to their own terms and are not limited to the twelve-month or six-month periods stated here.

12.4 Permitted Competitive Employment. Nothing in this Agreement automatically prohibits Employee from accepting employment with a Competitor. Employee may remain employed by a Competitor if Employee's duties are outside the Restricted Competitive Services described in Section 12.1, are performed outside the Restricted Territory where the geographic restriction applies, or are otherwise structured so that Employee does not use or disclose Confidential Information. The Company may request a written description of proposed duties reasonably sufficient to evaluate compliance, but Employee is not required to disclose another employer's confidential information.

12.5 Restricted Customer Non-Solicitation. For six (6) months after separation, Employee will not directly solicit a Restricted Customer, as defined in Section 1.4, for the purpose of moving that customer's enterprise analytics business from Northstar to a Competitor. General advertising not directed to a Restricted Customer does not violate this provision. Responding to an unsolicited inquiry is not automatically prohibited, but Employee may not use Confidential Information or targeted pricing knowledge to induce the Restricted Customer to move business.

12.6 Employee Non-Solicitation. For six (6) months after separation, Employee will not directly solicit a Company employee whom Employee supervised during the final six months of employment to leave Northstar for the purpose of joining Employee's new business unit. This provision does not prohibit general job postings or communication initiated by the other employee without prior solicitation.

12.7 Modification and Severability of Restrictions. The parties intend the restrictions in this Section to be enforced only to the extent reasonably necessary to protect legitimate Company interests. If a court determines that a particular duration, territory, customer definition, or category of services is unenforceable, the parties request that the court enforce a lawful narrower restriction where permitted rather than invalidate unrelated obligations. Nothing in this subsection changes the definition of Cause in Section 1.7 or the general severability rule in Section 19.

13. Remedies and Transition Procedures

13.1 Injunctive Relief. Employee acknowledges that unauthorized use of Confidential Information, misuse of trade secrets, or certain breaches of Section 12 may cause harm that is difficult to measure solely in money. Subject to applicable law and the requirements for equitable relief, the Company may seek temporary, preliminary, or permanent injunctive relief in addition to other lawful remedies.

13.2 Transition Notice. During the final fourteen days of employment, the Company may require Employee to identify pending proposals, renewal deadlines, pricing commitments, and customer-transition issues. This operational transition requirement is not a post-employment non-solicitation restriction and does not extend the six-month period in Section 12.5.

13.3 No Automatic Forfeiture. A disputed post-employment activity does not automatically cause forfeiture of earned base salary or amounts that applicable law requires the Company to pay. Any claim for damages or equitable relief must be determined under applicable law and the dispute procedures in Section 17.

14. Representations Concerning Prior Obligations

14.1 Employee Representation. Employee represents that entering into and performing this Agreement does not knowingly require Employee to violate a lawful obligation owed to a prior employer. Employee will not bring a former employer's confidential documents or trade secrets to Northstar.

14.2 Company Direction. The Company does not request or authorize Employee to use a prior employer's protected information. If Employee is uncertain whether information is restricted, Employee should consult the Legal Department before using it in Company work.

15. Governing Law

This Agreement is governed by the law of the State of Franklin, without regard to conflict-of-law principles that would require application of another jurisdiction's substantive law, except to the extent applicable law requires otherwise. The parties acknowledge that enforceability of a particular restrictive covenant may depend on facts existing at the time enforcement is sought.

16. Notices

16.1 Formal Notices. Notices concerning resignation, alleged material breach, exercise of rights under Section 17, or changes to the addresses designated below must be in writing and delivered personally, by nationally recognized overnight courier, or by electronic mail with confirmation of receipt.

16.2 Addresses. Notices to the Company will be directed to the General Counsel at Northstar Analytics Inc., Westbridge, Franklin, with a copy to the Chief People Officer. Notices to Employee will be directed to the most recent personal address and email address reflected in Company records unless Employee provides a replacement notice address.

17. Dispute Resolution

17.1 Good-Faith Conference. Before filing a non-emergency claim arising from this Agreement, the parties will attempt in good faith to resolve the dispute through a conference between Employee and a Company representative with authority to resolve the matter. This requirement does not prevent either party from seeking urgent provisional relief when delay could cause material harm.

17.2 Venue. Subject to any mandatory legal requirement, a court action concerning this Agreement will be brought in a state or federal court located in Franklin. The parties consent to personal jurisdiction in such courts for disputes arising from this Agreement.

17.3 Attorneys' Fees. Each party will bear its own attorneys' fees except where a statute, court rule, or separate written settlement provides otherwise.

18. Survival and Continuing Obligations

Sections 5.3, 7, 8, 9 to the extent applicable after separation, 12, 13, 15, 17, 18, 19, and 20 survive termination according to their terms. The fact that a provision survives does not mean that every obligation is perpetual; for example, Section 12.3 expressly limits certain restrictive-covenant periods while Section 7 may continue longer for information that remains protected.

19. General Severability

If any provision other than a restriction specifically addressed by Section 12.7 is determined to be invalid or unenforceable, the remaining provisions will remain in effect to the extent they can operate independently. The parties will interpret this Agreement to preserve lawful obligations without rewriting the parties' economic arrangement more broadly than necessary.

20. Entire Agreement; Amendments; Counterparts

20.1 Entire Agreement. This Agreement, including Schedules A and B and any written commission-plan amendment expressly incorporated by reference, states the parties' agreement concerning the subjects addressed here and supersedes prior oral discussions concerning those subjects. Company policies may supplement operational requirements but do not amend this Agreement unless the amendment requirements in Section 20.2 are satisfied.

20.2 Amendments. A material amendment to this Agreement must be in a writing that identifies this Agreement and is signed by Employee and an authorized Company officer. Changes to account assignments, sales territories for current employment, or prospective commission metrics do not by themselves amend the definitions or post-employment restrictions in Section 12.

20.3 Counterparts and Electronic Signatures. This Agreement may be signed in counterparts and by electronic signature, each of which will be treated as an original and all of which together constitute one instrument.

SIGNATURES

NORTHSTAR ANALYTICS INC.

EMPLOYEE

By: _____

James Carter: _____

Name: Evelyn Hart

Date: _____

Title: Chief People Officer

Date: March 2, 2023

SCHEDULE A - ENTERPRISE SALES INCENTIVE PLAN

Effective for calendar year 2023

A.1 Purpose

The Enterprise Sales Incentive Plan provides variable compensation for eligible sales leadership. It is a compensation schedule and does not define the post-employment terms "Competitor," "Restricted Customer," or "Restricted Territory." Those terms are defined only in Section 1 of the Employment Agreement.

A.2 Target Incentive

Employee's target annual variable compensation is \$112,000 at 100 percent plan attainment. Actual incentive may be higher or lower depending on recognized revenue, team attainment, strategic-account objectives, and approved adjustments.

A.3 Account Credit

Commission credit generally follows the written account assignment in effect when an opportunity is accepted into the qualified pipeline. Shared credit requires written approval. A customer may remain assigned to Employee for commission administration even when operational responsibility is temporarily delegated to another sales leader. Commission assignment alone does not establish Material Responsibility for purposes of Section 1.5 of the Employment Agreement.

A.4 Payment Timing

Quarterly incentives are calculated after quarter close and paid after Finance validates revenue and any applicable cancellation or collection conditions. Nothing in this Schedule alters the Company's right to recover a payment made because of an administrative error, subject to applicable law.

A.5 Changes

The Company may prospectively modify performance measures, quotas, and crediting rules. A change to this Schedule does not modify the twelve-month duration, fifty-mile geography, or six-month customer non-solicitation period stated in Section 12 of the Employment Agreement unless an amendment satisfies Section 20.2 of the Agreement.

SCHEDULE B - PRIOR MATERIALS

Employee has not identified any prior invention, software library, sales methodology, or other proprietary material that Employee intends to incorporate into Company Work Product as of the Effective Date. This schedule may be amended only by a writing signed by Employee and an authorized Company officer.